

MASTER SERVICES AGREEMENT

Date *

2023-05-25



This Master Services Agreement (this "**Agreement**") is made and entered into as of

(the "**Effective Date**") by and between Smart Support LLC, dba 'Octomaids' (the "**Company**"), a Washington Business Entity, having a principal place of business at 7202 N.E. Hwy 99, Suite 106-104, Vancouver, Washington, 98665, and

The Contractor *

Mooncreek Janitorial services LLC

having a principal place of business at *

2829 12th ave Forest Grove

In consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Company and the Contractor (hereinafter, collectively, the "**Parties**", or each, individually, a "**Party**") agree as follows:

1. Services

The Company engages the Contractor to provide the services specified in Schedule A hereto (the "**Services**").

2. Compensation and Expenses.**2.1 Fees.**

As the Contractor's sole compensation for the Services and rights granted under this Agreement, the Company shall pay the Contractor a fixed fee of sixty percent (60%) of every contract for Services with a Customer signed up through the Company (the "**Fees**"), payable biweekly with receipt by the Company of an invoice from the Contractor detailing and outlining their services provided for Company.

2.2 Expenses

The Contractor is solely responsible for any expenses or costs incurred by the Contractor in connection with the performance of the Services. The Company shall be under no obligation to reimburse the Contractor for any such expenses or costs. However, the Company does pay for Customer payment processing and all credit card fees associated with the processing.

2.3 Payment Terms.

The Contractor shall invoice the Company in a timely manner for all Fees and expenses due hereunder accompanied by documentation reasonably requested by the Company evidencing all charges. The Company will pay the full amount of each undisputed invoice on a biweekly basis following receipt thereof, except for any amounts that the Company disputes in good faith.

3. Representations and Warranties.

The Contractor represents and warrants that:

(a) the Contractor will comply with all applicable laws, rules, and regulations in performing the Services;

the Services will be performed in compliance with generally accepted professional procedures and industry standards prevailing at the time the Services are performed;

(c) all Services will meet any specifications and requirements set forth in this Agreement;

(d) the Contractor has, and shall maintain in effect during the Term (as defined below) of this Agreement, all licenses, permits, qualifications, and approvals which are legally required for the Contractor to render the Services; and

(e) none of the Services or Work Product (as defined below), and the Company's use thereof, infringe or will infringe any intellectual property right of any third party.

4. Relationship of the Parties.

The Contractor's relationship with the Company is that of an independent contractor and nothing in this Agreement is intended to, or shall be construed to, create a partnership, agency, joint venture, employment, or similar relationship. The Contractor will not be entitled to any benefits made available to the Company's employees. The Contractor is not authorized to make any representation, contract, or commitment on behalf of the Company unless specifically requested or authorized in writing to do so by the Company.

5. Intellectual Property Rights.

The Company is and will be the sole and exclusive owner of all right, title, and interest to all the results and proceeds of the Services performed under this Agreement, and all other ideas, proposals, inventions, products, designs, documentation, processes, techniques, algorithms, materials, and all other work product of any kind whatsoever, that the Contractor may create, prepare, produce, author, derive, edit, modify, conceive, or reduce to practice, alone or jointly with others, in connection with performing the Services, or that result from or that are related to the Services (collectively, the **"Work Product"**). The Contractor hereby irrevocably transfers and assigns to the Company, and agrees to irrevocably transfer and assign to the Company, all right, title, and interest in and to the Work Product, including all worldwide patent rights (including patent applications and disclosures), copyrights, mask work rights, trademarks (together with the goodwill symbolized thereby), trade secret rights and other confidential or proprietary information, know-how, and other intellectual property rights therein.

To the extent that any of the Contractor's pre-existing materials are incorporated in or combined with any Work Product or otherwise necessary for the use or exploitation of any Work Product, the Contractor hereby grants or will cause to be granted to the Company a non-exclusive, royalty-free, irrevocable, perpetual, fully paid-up, worldwide license to fully use, publish, reproduce, perform, display, distribute copies of, prepare derivative works based upon, make, have made, sell, offer to sell, import, and otherwise exploit such pre-existing materials and derivative works thereof. The Company may assign, transfer, and sublicense (through multiple tiers) such rights to others without the Contractor's approval. The Contractor agrees that the Contractor shall not incorporate, or permit to be incorporated, any of its pre-existing materials into any Work Product without the Company's prior written consent.

6. Term and Termination.

- ■ This Agreement will commence on the Effective Date and, unless sooner terminated pursuant to this Section, shall continue for a period of one (1) year, after which it will automatically renew for additional one (1) year renewal terms unless either Party gives at least thirty (30) days' written notice of non-renewal prior to the end of the then-current term (the **"Term"**).
- *Termination by the Company.*
 - The Company may terminate this Agreement at any time, with or without cause, with termination effective upon fifteen (15) calendar days upon the Company's delivery to the Contractor of written notice of termination.
- *Termination by the Contractor.*
 - The Contractor may terminate this Agreement without cause upon thirty (30) calendar days' written notice to the Company. The Contractor may also terminate this Agreement upon five (5) calendar days' written notice to the Company, if the Company materially breaches this Agreement, and such breach is incapable of cure, or with respect to a

material breach capable of cure, the Company does not cure such breach within ten (10) calendar days after receipt of written notice of such breach.

7. Insurance

During the Term of this Agreement, the Contractor shall secure and maintain, at its own expense, the insurance necessary to cover its obligations and responsibilities under this Agreement. The Company and its officers and employees shall be included as an additional insured in said insurance policies. At the Company's request, the Contractor shall provide the Company with certificates or other acceptable proof of its insurance, describing the coverage of its insurance and notice of any material change to its insurance.

8. Non-Interference with Business.

8.1 Non-Solicitation.

During the

Term and for a period of eighteen (18) months thereafter, the Contractor shall not directly or indirectly (i) solicit, encourage, interview, entice, discuss with, induce, or attempt to induce any employee of the Company to leave the employ of the Company, or in any way interfere with the relationship between the Company and any employee thereof; (ii) hire any person who is or was an employee of the Company at any time during the Term; or (iii) induce or attempt to induce any customer, supplier, licensee, or other business relation of the Company to cease doing business with the Company or in any way interfere with the relationship between any such customer, supplier, licensee, or business relation and the Company

8.2 Non-

Disparagement.

The Contractor agrees, during the Term of this Agreement and at any time thereafter, not to publish or communicate to any person or entity any Disparaging (as defined herein) remarks, comments, or statements concerning the Company. "Disparaging" remarks, comments, or statements are those that impugn the character, honesty, integrity, morality, business acumen, or abilities in connection with any aspect of the operation of the business of the individual or entity being disparaged.

9. Indemnification

The Contractor shall indemnify, defend, and hold harmless the Company and its affiliates and their respective officers, directors, employees, agents, affiliates, successors, and permitted assigns (collectively, "**Indemnified Party**") from and against any and all losses, claims, actions, suits, complaints, damages, liabilities, penalties, interest, judgments, settlements, deficiencies, disbursements, awards, fines, costs, fees, or expenses of whatever kind, including reasonable attorneys' fees, fees and costs of enforcing any right to indemnification under this Agreement, and the cost of pursuing any insurance providers, incurred by an Indemnified Party in a final judgment, relating to any claim of a third party or an Indemnified Party arising out of or relating to (a) the willful, fraudulent, or negligent acts or omission of the Contractor, (b) the Contractor's material breach of any representation, warranty, or obligation under this Agreement, or (c) an allegation that any item, material, and other deliverable delivered by the Contractor under this Agreement infringes upon any intellectual property rights or publicity rights of a third party. The Contractor shall not enter into any settlement without the Company's or such Indemnified Party's prior written consent. The Company may satisfy such indemnity (in whole or in part) by way of deduction from any payment due to the Contractor.

10. Miscellaneous

10.1 Governing Law

This Agreement and all related documents, and all matters arising out of or relating to this Agreement, whether sounding in contract, tort, or statute are governed by, and construed in accordance with, the laws of the State of Washington, without giving effect to any conflict of law principles.

10.2 Entire Agreement

This Agreement, together

any other documents referenced herein, constitutes the entire agreement of the Parties with respect to the subject matter contained herein. This Agreement supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to the subject matter hereof.

10.3 Successors and Assigns

The Contractor shall not assign or delegate any of its rights or obligations under this Agreement without the prior written consent of the Company. Any purported assignment or delegation in violation of this Section shall be deemed null and void. The Company may freely assign or delegate its rights and obligations under this Agreement at any time. Subject to the limits on assignment stated above, this Agreement will inure to the benefit of, be binding on, and be enforceable against each of the Parties hereto and their respective successors and assigns.

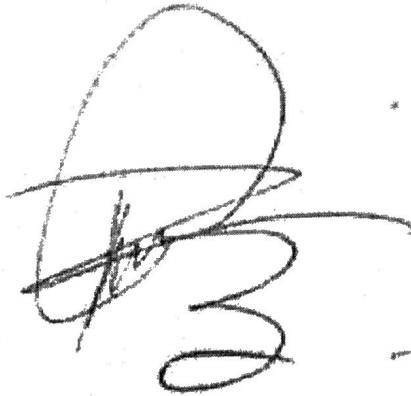
10.4 Waiver; Modification

This Agreement may only be amended, modified, or supplemented by a written agreement signed by each Party hereto. No waiver by any Party of any of the provisions of this Agreement shall be effective unless explicitly set forth in writing and signed by the Party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof, nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

10.5 Severability

If any term or provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.

Company 'Smart Support LLC'
Name: NORMA DUQUETTE
Title: MEMBER/ MANAGER



CONTRACTOR COMPANY NAME *

Mooncreek Janitorial Services LLC

Title *

owner

Contractor Signature *

[clear](#)

Print name *

Martha Gonzalez

Close